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Tentative Ruling

(1)

DEFENDANT COVINA 023 – WOOD 206, LP'S MOTION TO STRIKE PORTIONS OF PLAINTIFFS' THIRD AMENDED COMPLAINT is TBD/likely DENIED due to lack of facts re: ratification.

(2)

DEFENDANT COVINA 023 – WOOD 206, LP'S DEMURRER TO PLAINTIFFS' THIRD AMENDED COMPLAINT is OVERRULED.

Background

This

is a habitability case wherein the plaintiffs (various families) allege their units had some of the following nuisance, untenable, and substandard conditions: cockroaches, electrical surge, low water pressure, mold, clogged bathroom sink, and deteriorated kitchen cabinets.

On

January 14, 2025, Plaintiffs CLAUDIA PEÑA, an individual and as Guardian ad Litem for RUBEN PRADO, a minor child, AURORA PRADO, a minor child, and JOSIAH PRADO, a minor child; RICHARD PRADO, an individual; IDALIA JIMENEZ, an individual; ANDREW ALDERETE, an individual; DAVID ARNOLD, an individual; HELEN LEWIS, an individual; and BIANCA ARNOLD filed suit against Defendants COVINA 023 – WOOD 206, LP, a California limited partnership; PAMA IV PROPERTIES, INC., a California Corporation; REGENCY MANAGEMENT XLIX, INC. dba REGENCY MANAGEMENT INC. (collectively, "Defendants") for:

1. Breach Of Implied Warranty Of Habitability;
2. Tortious Breach Of Implied Warranty Of Habitability;
3. Negligence; And
4. Private Nuisance

On

March 26, 2025, Plaintiffs, additionally with Plaintiffs JESUS GARCIA an individual; and MANUEL RODRIGUEZ filed a first amended complaint (FAC) adding more COAs for the following seven:

1. Breach Of Implied Warranty Of Habitability;
2. Tortious Breach Of Implied Warranty Of Habitability;
3. Negligence;
4. Private Nuisance;
5. Intentional Infliction Of Emotional Distress;
6. Violation Of Business And Professions Code, Section 17200
7. Unjust Enrichment

On

May 19, 2025, Defendants filed their answer.

On

June 20, 2025, a stipulation for leave to file a second amended complaint (SAC) was filed but rejected by the court clerk.

On

November 7, 2025, a motion for leave to file a SAC was filed.

On

February 9, 2026, the court granted the motion which additional tenants and

additional units. More specifically, Plaintiffs seek to add twenty-eight (28) plaintiffs—bringing the total to 27 adults and 13 children and encompassing eight units—and adding an 8th COA for constructive eviction.

On

February 18, 2026, Plaintiffs filed their second amended complaint (SAC) for:

1. Breach Of Implied Warranty Of Habitability;
2. Tortious Breach Of Implied Warranty Of Habitability;
3. Negligence;
4. Private Nuisance;
5. Intentional Infliction Of Emotional Distress (lied)
6. Violation Of Business And Professions Code, Section 17200
7. Unjust Enrichment
8. Constructive Eviction

On

March 20, 2026, Defendant COVINA 023 – WOOD 206, LP (“Covina”) filed a demurrer which was sustained on 4/21/26 with leave to amend.

On

May 21, 2026, a third amended complaint (3AC) was filed which asserted seven COAs, minus the unjust enrichment COA. (The footer of the 3AC states it is the ‘SAC’, but the court presumes that be an inadvertent error.)

On

June 30, 2026, Covina filed the instant MTS and demurrer.

On

July 9, 2026, DEFENDANTS PAMA IV PROPERTIES, INC., AND REGENCY MANAGEMENT XLIX, INC. dba REGENCY MANAGEMENT INC.'S filed a 'NOTICE OF JOINDER IN DEFENDANT COVINA 023- WOOD 206, LP'S DEMURRER [AND MTS] TO PLAINTIFFS' THIRD AMENDED COMPLAINT.'

On July 28, 2026,
Plaintiffs filed an opposition.

On August 3, 2026,
Covina filed a reply.

Discussion

Previously,
the court sustained the demurrer with leave to amend solely on the grounds that of uncertainty i.e., that the SAC failed to plead which Defendant was responsible for what alleged conduct. Comparing the SAC to the 3AC, more is pled about the purported relationship between Defendants. The 3AC alleges that: "Covina 023 was and is the owner of the Property and, in connection therewith, authorized and ratified the tortious and other wrongful conduct described herein through one or more managing agents or employees"; that "Defendant Pama IV Properties, Inc. ("Pama IV Properties Inc.") ...has directly supervised the day-to-day operations of Covina 023"; and that "Defendant Covina 023 employs Defendant Regency Management, as the management company for the Property and has authorized Defendant Regency Management to act on Defendant Covina 023's behalf on all matters related to the Property, including the responsibility for management and maintenance of the Property including the complaints made by tenants and the uninhabitable conditions at the Property, but has failed and refused to remedy those uninhabitable conditions despite his ability and authority to do so." (See generally 3AC pp. 3-7.) In short, the basis of allegations against the moving party Covina 023 is that it was and is the owner of the Property and, in connection therewith, authorized and ratified the tortious and other wrongful conduct described herein through one or more managing agents or employees (i.e., PAMA IV Properties Inc. and Regency Management).

With
that, the defect previously identified has been cured. To the extent that in reply, Defendant attempts to raise the issue, that is improper and will be disregarded.^[1]
(Reply p. 7, Header 'C' ["The TAC Alleges No Conduct by This Defendant."].)

Now,
in this demurrer, Defendant argues that the IIED fails because "Plaintiffs have

pled zero conduct on the part of Defendants. Instead, Plaintiffs' TAC makes general allegations of repeated notice to Defendants of various conditions and alleges that those conditions continued. Given that Plaintiffs must allege conduct so extreme as "to exceed all bounds of that usually tolerated in a civilized community," Plaintiffs' Complaint is fatally defective in its assertion of this cause of action." (Demurrer pp. 6-7.)

The court disagrees, and Defendant's reliance upon non-habitability cases are inapposite. For example, Defendant cites to *Hughes v. Pair* (2009) 46 Cal.4th 1035, but that case someone making lewd comments and demanding sexual favors in return for working to approve release of funds from a trust. Defendant's citation to *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965 to set the standard is equally unavailing as that case involved a toxic exposure case brought by four landowners living adjacent to a landfill who as a result of defendant Firestone's practice of disposing of its toxic wastes at the landfill were subjected to prolonged exposure to certain carcinogens.

The most cited case in habitability cases is *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, which is the case relied upon by Plaintiffs. While *Stoiber* may not present identical facts like Defendant is requiring, the purpose of that case is to show that IIED is a permissible COA in habitability cases. In *Stoiber*, regarding the condition of the subject premises, the plaintiffs alleged that "numerous defective and dangerous conditions were in existence, including, but not limited to leaking of sewage from the bathroom plumbing; defective and dangerous electrical wiring; structural weaknesses in the walls; deteriorated flooring; falling ceiling; leaking roof; dilapidated doors; broken windows; and other unsafe and dangerous conditions." (Id. at p. 912.) Additionally, the county's health department issued a notice to vacate and demolish the subject premises based upon the alleged conditions, a heavy cockroach infestation. (Ibid.) The court's opinion regarding the IIED COA begins at page 921 and briefly goes through two cases—*Newby v. Alto Rivera Apartments* (1976) 60 Cal.App.3d 288 and *Aweeka v. Bonds* (1971) 20 Cal.App.3d 278—to hold that IIED permissible.[2]

The court's reasoning?

Because "[w]hether this is so under the present allegations, presents a factual question it cannot be said as a matter of law that appellant has not stated a cause of action." (Id. at p. 922.) Defendant, here, however, is asking for the court to make

a factual determination.

And

here, the facts are enough. Plaintiffs clearly allege the problems and the request for repairs and the timeline. For example, since 2018, unit 6 has been making complaints to managers about a cockroach infestation; since 2017, mold in the bathroom; and since 2024, cracks in the ceiling. (3AC pp. 7-8.) The same goes for the family in Unit 23 who since 2015 made complaints about mold; throughout the tenancy made complaints a leak; and since 2015 an inoperable heater. (3AC.) So, in short, for years there have been verbal and written complaints to managers about habitability concerns that management has repeatedly ignored. (3AC p. 2:11-13; 15:6-7; see also ¶ 73.)

To

the extent that in reply defendant argues that the foregoing is a 'legal conclusion,' it is unclear how so. (Reply p. 5.) to the extent that Defendant argues "An unkept promise to repair is the ordinary currency of a habitability dispute," the relevancy of the argument is unclear but perhaps to show Defendant was ignoring requests and that such conduct is "ordinary." (Reply p. 5:26-28.)

All

in all, Defendant has presented no instructive authority to suggest the allegations are insufficient for an IIED COA.

As

for the motion to strike punitive damages, that request is TBD.

Defendant

argues that "Allegations of delay, failure to repair, or inadequate maintenance, without more, do not establish malice, oppression, or fraud under Civil Code section 3294." (Reply p. 8:8-10.) But Defendant conclusively states as much without citation to authority. To the contrary, as noted in opposition, a conscious disregard for the safety of others may constitute the malice required to sustain a claim for punitive damages. (Taylor v. Superior Court, 24 Cal.3d 890; G. D. Searle & Co. v. Superior Court, 49 Cal.App.3d 22.) "In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and he willfully and deliberately failed to avoid those consequences." (Opp. p. 6, quoting Blegen v. Superior Court (1981)

125 Cal.App.3d 959, 963.) And while Defendant maintains that “the Opposition never does is identify a fact, a person, an act, a date, a statement, that would permit a trier of fact to find that this Defendant engaged in despicable conduct with a willful and conscious disregard of Plaintiffs’ rights,” it does. The Defendant treats the 3AC as if it merely states there were some problems and that the plaintiffs relayed said problems to management. But Plaintiffs plead more. Plaintiffs lay out when concerns were made about what and to whom. The court is unaware of authority that Plaintiffs must present essentially a log of the exact statements made to the name of the employee made and what time and date those statements were made. If anything, such facts are presumably within the knowledge of Defendant.

To

the extent that Defendant argues “TAC does not identify any such individual or allege specific facts describing conduct by a managing agent that would support punitive damages against a corporate defendant,” the motion does not meaningfully analyze ratification.

To

the extent that Defendant argues “the TAC alleges defendant-specific conduct distinguishing Defendant from the other named entities in support of punitive damages,” as with above, the motion does not meaningfully address ratification.

Notwithstanding,

the MTS likely will be granted because of insufficient facts regarding Civil Code Section 3294, Subdivision (b). The statute provides that where the defendant is an entity, punitive damages may not be awarded unless the oppression, fraud, or malice was on the part of an officer, director, or managing agent, or was authorized or ratified by one, or unless such a person had advance knowledge of the unfitness of an employee and employed that person with a conscious disregard of the rights or safety of others, that is true. In reply, Defendant argues that Plaintiffs did not address that argument, but in fairness, they could not because it was raised in the reply. That said, in fairness, the court will allow the parties to present an oral argument as to the foregoing and issue a ruling thereafter. During the hearing, Plaintiffs must present facts that would satisfy this statute.

Thus, while the court is inclined to deny

the motion to strike punitive damages, it is TBD upon Civil Code Section 3294, Subdivision (b).

Finally,

the issue of filing a fourth amended complaint remains. In opposition, Plaintiffs state that due to a clerical error, the Third Amended Complaint did not include all Plaintiffs to whom Defendants had previously stipulated. Indeed, as noted in Reply, it appears Plaintiffs are attempting to introduce new plaintiffs into the action via opposition e.g., “Castro Family” at Unit 14, the “Sanchez Family” at Unit 18, the “Lagunas Family” at Unit 26, and the “Martinez Family” at Unit 15. (Opp., pp. 2–4.) Yet, none of those individuals, families, or units appears anywhere in the TAC. Defendant does seem to oppose the request but that “any order be limited to the addition of the omitted Plaintiffs and expressly preserve Defendant’s right to respond to the amended pleading as authorized by statute.” (Reply p. 9.) The court finds Defendant’s reasonable and will inquire as to how the parties intend on proceeding.

Conclusion

Based

on the foregoing, the demurrer to the IIED COA is OVERRULED; MTS is likely to be denied.

[1] The demurrer is

brief, and the arguments/analysis section go towards whether the IIED alleges extreme and outrageous conduct. The demurrer does not mention an “improper lumping” of defendants.

[2] In Aweeka, the property had major leaking

problems and the backdoor needed repair; in seeming response to the plaintiff’s request to have the defects fixed or else they would deduct the cost of repairs from their rent, the landlord served a notice indicating the tenants’ rent would be increased. In finding an IIED COA permissible, the Aweeka court “stressed the

significance of the relationship between the parties in determining whether liability should be imposed. The authorities indicate that landlords have been held liable for abuse of their position.” (Id. at pp.

281-282.) Equally here, there is a landlord-tenant relationship.